

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ben Gilmore	Team: Squad #15	CCRB Case #: 201706059	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 07/25/2017 9:15 PM	Location of Incident: Morris Avenue and East 166th Street	18 Mo. SOL 1/25/2019	Precinct: 44		
Date/Time CV Reported Wed, 07/26/2017 4:41 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 07/26/2017 4:41 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Jacqueline Becker	24265	959486	044 PCT
2. POM Harris Haskovic	27534	953953	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Harris Haskovic	Abuse: Police Officer Harris Haskovic frisked § 87(2)(b)	A . Unsubstantiated
B . POF Jacqueline Becker	Abuse: Police Officer Jacqueline Becker searched § 87(2)(b)	B . Unsubstantiated
C . POF Jacqueline Becker	Abuse: Police Officer Jacqueline Becker frisked § 87(2)(b)	C . Unsubstantiated
D . POF Jacqueline Becker	Abuse: Police Officer Jacqueline Becker frisked § 87(2)(b)	D . Unsubstantiated
E . POF Jacqueline Becker	Abuse: Police Officer Jacqueline Becker searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On July 26, 2017, § 87(2)(b) appeared in person at the CCRB and filed this complaint on behalf of himself and his two step-daughters, § 87(2)(b) and § 87(2)(b).

On July 25, 2017, at approximately 9:15 p.m., § 87(2)(b) was driving his vehicle in the vicinity of Morris Avenue and East 166th Street in the Bronx. § 87(2)(b) sat in the front passenger's seat and § 87(2)(b) sat in the back seat. Two plainclothes officers, PO Harris Haskovic and PO Jacquelin Becker, both from the 44th Precinct, were on routine patrol when they pulled § 87(2)(b)'s vehicle over for excessively tinted windows.

PO Haskovic approached § 87(2)(b) on the driver's side, and PO Becker approached the passenger's side. Both PO Haskovic and PO Becker testified that they smelled an odor of marijuana emanating from the vehicle when they approached. § 87(2)(b) and § 87(2)(b) each denied that there was an odor of marijuana emanating from the vehicle. PO Haskovic asked § 87(2)(b) for his license, and he provided it. PO Haskovic ran § 87(2)(b)'s license, and it indicated that § 87(2)(b) had an active warrant.

PO Haskovic asked § 87(2)(b) to step out of the vehicle, and § 87(2)(b) complied. § 87(2)(b) began recording the incident on her cell phone. § 87(2)(b) alleged that PO Haskovic frisked his waistband and crotch area (**Allegation A**). PO Haskovic then placed § 87(2)(b) in handcuffs.

PO Becker asked § 87(2)(b) to exit the vehicle. § 87(2)(b) passed her cell phone to § 87(2)(b) and exited the vehicle. § 87(2)(b) alleged that PO Becker reached inside her pocket and frisked her legs (**Allegations B and C**). PO Becker then asked § 87(2)(b) to exit the vehicle. § 87(2)(b) stopped recording the incident and stepped outside of the vehicle. § 87(2)(b) alleged that PO Becker frisked her (**Allegation D**).

§ 87(2)(b) and § 87(2)(b) were each led to the rear of § 87(2)(b)'s vehicle. § 87(2)(b) and § 87(2)(b) alleged that PO Becker searched the inside of § 87(2)(b)'s vehicle, including the front driver's door and under the front driver's seat (**Allegation E**).

PO Haskovic was unable to confirm that § 87(2)(b) had an active warrant, so § 87(2)(b) was released from handcuffs and issued one traffic ticket for the excessively tinted windows (Board Review 01). No summonses were issued, nor were any arrests made as a result of this incident. § 87(2)(g), § 87(4-b)

Video footage from § 87(2)(b) cell phone captures a portion of this incident, a SnagIt copy of which is placed below. The original video may be found at Board Review 02 and a summary of the video may be found at Board Review 03.



201706059_20170911_1448_DM.mp4

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered mediation, but he rejected it, § 87(2)(b).
- On September 11, 2017, a Notice of Claim inquiry was submitted with the New York City Comptroller's Office (Board Review 04). The results will be added to the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Civilian and Officer CCRB Histories

- This is the second CCRB complaint made by [§ 87(2)(b)] (Board Review 06).
- This is the first CCRB case in which [§ 87(2)(b)] or [§ 87(2)(b)] is involved (Board Review 07).
- PO Haskovic has been a member of service for four years. He has been the subject of four previous CCRB allegations, two of which were substantiated. In CCRB 201406199, a frisk and a search of person allegation were each substantiated against PO Haskovic. The CCRB recommended Command Discipline A for both allegations, but the NYPD declined to take action for the search of person allegation and imposed formalized training for the frisk allegation.
- PO Becker has been a member of service for one year, and this is the first CCRB complaint made against her.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Harris Haskovic frisked [§ 87(2)(b)]

Allegation B – Abuse of Authority: Police Officer Jacqueline Becker searched [§ 87(2)(b)]

Allegation C – Abuse of Authority: Police Officer Jacqueline Becker frisked [§ 87(2)(b)]

Allegation D – Abuse of Authority: Police Officer Jacqueline Becker frisked [§ 87(2)(b)]

Allegation E – Abuse of Authority: Police Officer Jacqueline Becker searched the vehicle in which [§ 87(2)(b)] and [§ 87(2)(b)] were occupants.

It is undisputed that PO Becker and PO Haskovic stopped [§ 87(2)(b)]'s vehicle only because it had excessively tinted windows. It is further undisputed that each of the alleged actions occurred—PO Haskovic frisked [§ 87(2)(b)] PO Becker searched and frisked [§ 87(2)(b)] PO Becker frisked [§ 87(2)(b)] and PO Becker searched the vehicle. [§ 87(2)(g)]

Both PO Becker (Board Review 08) and PO Haskovic (Board Review 09) testified that they smelled an odor of marijuana emanating from the vehicle when they approached, although neither could recall if it smelled smoked or un-smoked.

[§ 87(2)(b)] (Board Review 10), [§ 87(2)(b)] (Board Review 11), and [§ 87(2)(b)] (Board Review 12) each testified that there was not an odor of marijuana emanating from the vehicle. However, both [§ 87(2)(b)] and [§ 87(2)(b)] acknowledged that they had

just come from a home where marijuana was being smoked, and § 87(2)(b) acknowledged that her breath smelled like marijuana. § 87(2)(b) and § 87(2)(b) each testified that PO Becker made a comment about smelling marijuana during the incident. Nevertheless, § 87(2)(b) and § 87(2)(b) maintained that there was no odor of marijuana emanating from the vehicle.

No police documentation notes the alleged odor of marijuana. PO Becker did not document the alleged odor of marijuana in her memo book (Board Review 13). PO Haskovic wrote in his memo book that an odor of marijuana was detected during an unrelated car stop 20 minutes prior to his entry regarding this incident, but he did not note anything about marijuana in his memo book entry regarding this incident (Board Review 14). As discussed below, neither PO Becker nor PO Haskovic prepared a Stop, Question and Frisk Report regarding this incident (Board Review 15). It is undisputed that no marijuana or marijuana paraphernalia was recovered during this incident.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A – E** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

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Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date